

GRAHAM v CHANCE, et al

23CV46928

PLAINTIFF'S MOTION FOR LEAVE TO FILE A FIRST AMENDED COMPLAINT

This matter involves a complaint for employment discrimination and harassment brought by Amber Graham ("Plaintiff") against Defendants Pure Aloha ("Aloha"), Steven J. Chance ("Chance") and Sarah M. Barry ("Barry") (collectively "Defendants.")

Now before the Court is Plaintiff's motion for leave to file a First Amended Complaint ("FAC.") The motion is opposed.

I. Factual and Procedural Background

On September 11, 2023 Plaintiff filed her complaint against Defendants alleging various employment discrimination and harassment arising out of a physical assault that she suffered while an employee of Aloha. Plaintiff alleges that she was wrongfully accused of using a derogatory term against an African-American co-worker and asked to leave work for the day. She alleges that when she attempted to retrieve her personal belongings, she was physically assaulted, resulting in significant injuries including a broken nose and a concussion. The next day, Plaintiff received a termination notice from Aloha signed by Barry citing the allegation of a racial slur and falsely stating that Plaintiff had refused to take place in an investigation.

Plaintiff's initial complaint alleged causes of action for harassment, discrimination, retaliation, wrongful termination, and intentional infliction of emotional distress.

Plaintiff now seeks to add a cause of action for false imprisonment based on new evidence obtained during discovery.

II. LEGAL STANDARD

Leave to amend is permitted under Code of Civil Procedure section 473, subdivision (a). California courts have a "policy of great liberality in allowing amendments at any stage

of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.’ “ (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158 [citations omitted].) The “policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428 [citation omitted].) Further, “ ‘leave to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff’s claim is clear, but under substantive law, no liability exists and no amendment would change the result.” (*Id.* [citation omitted].)

A motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires a supporting declaration to set forth explicitly what allegations are to be added and where, and explicitly stating what new evidence was discovered warranting the amendment and why the amendment was not made earlier. The motion must also include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Cal. Rules of Court, rule 3.1324, subds. (a), (b).) Plaintiff has substantially complied with this requirement.

III. Discussion

Plaintiff seeks leave to amend her complaint in order to add a new causes of action for false imprisonment. According to Plaintiff, on September 18, 2025, Defendants responded to Plaintiff’s discovery requests with video evidence showing the altercation that occurred when Plaintiff attempted to leave the defendants’ business premises. Plaintiff’s counsel avers that within a week of receiving the video evidence, he contacted Defendants’ counsel asking to stipulate to the filing of a FAC. (Declaration of Dante T. Pride (“Pride Decl.”) ¶ 5.)

Defendants oppose the motion on the grounds that the allegations of false imprisonment are not specific enough and are potentially prejudicial. Defendants’ arguments go to issues that may be raised on demurrer or by a motion to strike but not to opposing leave to amend. Aside from vague accusations that the allegations could prejudice Defendants’ rights in this or other proceedings, Defendants provide no evidence or argument that granting leave to amend will prejudice their substantial rights. No trial date has been set and it appears that discovery is ongoing thus the motion is not prejudicially late.

Accordingly, Plaintiff's motion for leave to file the FAC is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Order.

**THE PEOPLE OF THE STATE OF CALIFORNIA v HILAMEN, et
al**

25CV48067

PLAINTIFF’S MOTION FOR ORDER OF POSSESSION

The State of California (“State”) seeks to acquire by eminent domain a portion of real property owned by Rodney and Consuelo Hilaman as part of a project to install a roundabout to improve intersection control and safety at State Routes 26 and 49. (Declaration of Powell Yang (“Yang Decl.”), ¶ 4.)

Parcel 17537-1 is located along State Route 49 up to and along the boundary of the intersection of State Routes 26 and 49. (Yang Decl. ¶3.) The subject larger parcel of .60 acres is adjacent to State Route 49, in the southwest quadrant of the intersection of State Routes 26 and 49. (Yang Decl. ¶ 5.) The larger parcel is irregularly shaped, generally level throughout and at grade with State Route 49 and is vacant. (*Ibid.*) Caltrans seeks a partial acquisition of 0.26 acre in fee for its Project as necessary for completion of its Project. (*Id.* ¶ 6.)

State now moves for an order for prejudgment possession of Parcel 17537-1. The motion is unopposed.

I. Legal Standard

Pursuant to Code Civil Procedure section 1255.410, subd.(a):

“At the time of filing the complaint or at any time after filing the complaint and prior to entry of judgment, the plaintiff may move the court for an order for possession under this article, demonstrating that the plaintiff is entitled to take the property by eminent domain and has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article.”

Where, as is the case here, the motion is unopposed, the Court shall make an order for possession where it finds: 1) the plaintiff is entitled to take the property by eminent